



सत्यमेव जयते

विदेश मंत्रालय



विशेषाधिकृत निर्देश

PRIVILEGED INSTRUCTIONS

**Ministry of External Affairs
REPUBLIC OF INDIA**



विदेश मंत्रालय
भारत सरकार

Ministry of External Affairs
Government of India

Privileged Instructions

Fundamental Principles

- Restoration of peace and tranquility within the Southeast Asian region.

Desired End State(s):

- Peaceful resolution of South China Sea (SCS) sovereignty issues on the basis of international law and the 1982 UN Convention on the Law of the Sea (UNCLOS).
- Continued Freedom of Passage throughout the waters of the western Pacific region.
- Chinese respect for and acceptance of Indian interests and relations within the region.
- Reduction of Chinese naval presence within the SCS.
- Increased commercial ventures with the SCS nations.

Principle Negotiation Positions

- Each nation must respect the sovereignty of all recognized nations and their rights regarding coastal regions, maritime and Exclusive Economic Zones, and verifiable claims to islands.
- Each nation must respect the right of all other nations to conduct relations with any other nations in all regards, to include the normal conduct of commerce.
- The threat of, or use of, force by any nation is counterproductive and must be avoided at all costs. However, every nation has the right to protect its citizens and territory against any, and all, legitimate threats.
- The involvement of third parties as "trusted partners" in multilateral negotiations can and must play an essential role in finding resolutions to the current problems between China, the Philippines, and Vietnam. Attempt to gain support of the Japan and the United States.
- All negotiation partners external to the situation should seek to establish unified positions on any and all possible paths toward the resolution of this situation, as this will maximize our combined leverage in order to achieve mutually lasting results.
- If a unified position is not attainable, seek to assure the Philippines and Vietnam that we are supportive of their positions, but only insofar as they are in accordance with UNCLOS tenets. Any claims outside of those tenets must be negotiated under existing UNCLOS regimes.
- If a peaceful resolution is achieved, ensure that the maintenance of any settlements, and agreements thereof, are codified through the creation of a new SCS dialogue system within ASEAN.

Delegation Instructions

Ensure periodic reports, requests for further guidance, or clarifications to the instructions herein are submitted via message to the office of the Foreign Minister.

GENERAL: While we have agreed to enter these talks in order to advance the search for a permanent solution to the situation within the South China Sea, our nation still is at odds with China over the Jammu-Kashmir region and our common border dispute. You are there to negotiate SCS issues and should be an honest broker between SCS states as a concerned outside party. The ASEAN-China Code of Conduct (COC) negotiations should not be prejudicial to legitimate interests of third parties and should be fully consistent with UNCLOS. Any actions or incidents that erode trust in the region are of concern to us.

China: While China has agreed to participate in these negotiations, it is not interested in a solution that impinges on its declared nine-dashed line boundary and its unfounded declaration that the SCS is a "Chinese archipelago." We expect the Chinese will talk about problems that exist, but it is unlikely that they will be open to proposals or compromises that might lead to lasting solutions. Chinese leaders play for time rather than compromise, for they see time as on their side. We must make it clear to them that time is not on their side. In order to succeed on this tack, we need the support of the other powers – Japan and the United States – along with that of Indonesia, the Philippines, and Vietnam, in agreeing that the threat of force can and will deter the Chinese rather than further inflame the region. As soon as possible, your delegation should seek to engage the other delegations on this topic and work to convince them to support our position. We do not seek to scuttle these talks, and we will not do so, but we must be firm in our determination to seek a preferable multilateral solution through negotiation, but military action may be necessary if China continues provocation.

Try to seek what short-term measures they are willing to accept short of an overarching solution. Express to them that we come to these talks to discuss SCS issues. Any talk about the border issue and we will walk out of these negotiations. They must demonstrate their willingness to participate in serious multilateral negotiations leading to an appropriate and equitable long-term solution. Express that the exploitation of SCS energy resources, which we all seek, will not occur – cannot occur – under the constant threat of Chinese attacks. Seek to discover if they are willing to agree to the emplacement of confidence building measures. Such measures might include coordinated joint patrols within disputed areas, joint cooperative energy exploration, the establishment of an SCS hotline between all SCS nations, or a multilateral agreement to cease any and all confrontational activities within the SCS (laying of buoys, placing of markers, land reclamation, etc.).

The Philippines and Vietnam: National pride and international respect are at stake for them both. It is now clear that ASEAN's inability to agree on a consistent position against China's increasingly aggressive acts has soured both Manila and Hanoi to the concept of regional multilateralism, especially in terms of altering the belligerent, overbearing behavior of their Chinese neighbor. Reassure both that we are supportive of their positions against China's nine-dashed line claim, insofar as their claims can be verified under UNCLOS. Seek their positions on the establishment of the same confidence building measures we propose discussing with the Chinese delegation. While we favor the continuance and strengthening of ASEAN, as the primary conduit for regional problem-solving efforts, reassure them that as a trusted partner, we are ready to act as an intermediary between both and the Chinese delegation, if they so desire. Seek to ascertain from each delegation what their specific objectives are for these negotiations, and if there is any common ground where we might be of assistance. Suggest that we might look to establish a unified position with Japan and the United States in support of their rights and ascertain whether that is something that they would welcome. If not, ask what role they see for the extra-regional nations.

Indonesia: As founding members of ASEAN, it is undoubtedly incumbent upon them to convince all parties that regional multilateralism is a sound, effective method for the maintenance of regional peace and the development of a mutually supportive regional community. Failure to do so could begin the process of the unraveling of the ASEAN concept and its accomplishments to date. While it is unlikely that either the Philippines or Vietnam would withdraw their membership, it is possible that

ASEAN could be reduced to a purely economic grouping. Emphasize support for ASEAN as the natural hub for regional problem solving, and our desire for its continued expansion. In the past Jakarta and Kuala Lumpur maintained friendly and cooperative relations with Beijing.

However, the Indonesian government has aggressively protected its EEZ which has led to confrontation and seizures of Chinese fishing vessels. Explore where the Indonesian delegation and government are in terms of their overall relations with China, and if and how these incidents have affected their once cordial relations.

Make sure they understand that our long-term goal is to increase economic multilateralism within the Western Pacific so that peaceful resolutions take place as a natural extension of those relationships. Also emphasize that the unique make-up of ASEAN, as a group of disparate smaller nations (in comparison to China), have divergent philosophies and national interests. Inevitably, this leads to weakness in terms of unity of effort.

Brunei and Malaysia: Emphasize support for ASEAN as the natural hub for regional problem solving. However, multilateralism will not always work in every situation. The unique make-up of ASEAN, as a group of disparate smaller nations (in comparison to China), have divergent philosophies and national interests. Inevitably, this leads to weakness in terms of unity of effort against a foe like China. Therefore, suggest their role should be to bring unqualified support to the Philippines and Vietnam. Suggest that they should use their cordial relations with Beijing to elicit commitments for an immediate reduction in tensions through the confidence building measures that we propose to all parties.

United States: In your talks with the US delegation, thank them for their continued commitment to maintaining a balance within the region, their support for ASEAN states, and our mutual partnership. Emphasize the need to use their influence with all nations in the ongoing efforts to find a peaceful solution to this complex problem. Seek to establish common ground on the possibility to concentrate on the immediate implementation of the same confidence building measures we wish to discuss with the SCS nations. Finding common ground between our two nations, and with Japan, will only strengthen our mutual efforts as it is essential to form a united front vis-à-vis China. Determine what actions, if any, within the SCS might provoke a US military response in support of their mutual defense treaty with the Philippines. Even though we agree the need for military preparedness and measured action as the situation requires, also emphasize the need for the preservation of peace and regional stability as the long-term goal.

Japan: In your talks with the Japanese delegation, seek to enlist their support for confidence building measures, as laid out above. As with your talks with the US, emphasize the need for a united front in our talks with the Chinese delegation, to include the threat of military force as a necessary component. Seek additional Japanese pressure on China to temporize its behavior by emphasizing their increased and inextricable economic ties. Japan is in a unique position of influence in this regard. Trade and investment ties let to the de-escalation of their tensions over the Senkakus. Seek to understand their position regarding the various claims by China, the Philippines, and Vietnam, and what they see as an equitable solution. Our continued military cooperation, through Exercise Malabar series, demonstrates our interoperability and willingness to work together. These exercises show our resolve to maintain a presence in the SCS to ensure the free flow of commerce.